

24TRCV00207 24TRCV00207

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-19

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Case Number: 24TRCV00207 Hearing Date: August 19, 2026 Dept: B

Moving Party: Plaintiff Paul Matthew

Cadieux

Responding Party: Defendant American Honda

Motor Company

Motion to Tax Costs

The Court considered the moving and opposition papers.

RULING

See Order below.

BACKGROUND

On January

22, 2024, Paul Matthew Cadieux and Maria Cadieux filed a complaint against American Honda Motor Co., Inc. for (1) violation of Civil Code §1793.2(d), (2) violation of Civil Code §1793.2(b); (3) violation of Civil Code §1793.2(a)(3); (4) breach of implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On

June 4, 2025, the Court overruled defendant's demurrer to the fifth cause of action and denied the motion to strike as to punitive damages.

On

August 13, 2025, the Court granted defendant's motion to bifurcate to address punitive damages in the second phase of trial, only if defendant is found guilty of malice, oppression, or fraud in the first liability phase of the trial.

On

August 22, 2025, the Court denied defendant's motion for summary adjudication as to the fifth cause of action for fraudulent concealment.

A jury

trial was held.

On

February 19, 2026, a judgment on special verdict was entered in favor of defendant and against plaintiffs. The jury found that the 2022 Honda Odyssey did not have a defect with the Honda Sensing System covered by the warranty that substantially impaired the vehicle's use, value, or safety to a reasonable buyer in plaintiffs' situation. The judgment states that defendant shall recover its costs and expenses against plaintiffs by memorandum.

On

March 3, 2026, defendant filed a notice of entry of judgment.

On

March 18, 2026, defendant filed a memorandum of costs for \$52,329.

LEGAL

AUTHORITY

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." Cal. Rules of Court, Rule 3.1700(b)(1).

"Except

as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is

entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” Nelson v. Anderson (1999) 72 Cal. App. 4th 111, 128-29 (citations and internal quotations omitted); CCP §1032(b) (“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding”).

CCP

§1033.5(c) states, in relevant part:

“Any award for costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2)
Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3)
Allowable costs shall be reasonable in amount.

(4)
Items not mentioned in this section . . . may be allowed . . . in the Court’s discretion.”

“If
the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the
items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.”

Ladas v. California State Automotive Assoc. (1993) 19 Cal. App.

4th 761, 774 (citation omitted). Id. “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the
burden is on the objecting party to show them to be unnecessary or unreasonable.” Nelson v. Anderson

(1999) 72 Cal. App. 4th 111, 131 (citations omitted). “[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather the losing party
has the burden to present evidence and prove that the claimed costs are not

recoverable.” Seever v. Copley Press,
Inc. (2006) 141 Cal. App. 4th 1550, 1557.

DISCUSSION

Plaintiffs request that the Court tax
and/or strike Items 1, 4, 8, 12, 13, and 15 in defendant’s memorandum of costs.

Item 1: filing and motion fees - \$2302.40

Plaintiffs contend that defendant
may not recover costs under Civil Code §1794(d) as that section only applies to
consumers/plaintiffs to recover expenses.

Plaintiffs also argue that defendant has not “offered any justification”
for its filing costs. Plaintiffs argue
that the costs are “exorbitant and unclear as to why they are so high.” Plaintiffs dispute \$495 “advance charge” for
a motion to strike and assert that the invoices “seem to be filled with
excessive overcharges for simply filing of documents.”

In opposition, defendant argues that
the filing costs are reasonable and necessary, citing to CCP §1033.5(a)(14),
which allows for fees “through an electronic filing service provider.” Defendant further asserts that the charges
are “explained” as the invoices identify the case, date, documents filed, and
each component of the charge.

The Court finds that the costs are
allowable and that plaintiffs have not met their burden that such costs are neither
reasonable nor necessary.

Item 4: deposition costs - \$8034

Costs of taking, transcribing, and
videotaping depositions are recoverable.
See CCP §1033.5(a)(3).

Plaintiffs question the variance in
costs of plaintiffs’ deposition transcripts.

Plaintiffs also argue that in plaintiffs’ deposition invoices, there are
“an exorbitant amount of unexplained charges” such as \$44 “oath and certificate
fee,” \$55 “production/handling,” \$65 “witness read & sign – online,” \$150 “videoconference

set-up," \$138 "interpreted transcript," and \$37 for "delivery per location," and that there is no explanation as to why they were necessary.

In opposition, defendant argues that the "transcribing" fees are reasonable and necessary. As for \$400 cancellation fee for plaintiff Paul Cadieux's deposition, plaintiffs' counsel had proposed July 25, 2024 for the continued deposition, which defendant agreed, but then cancelled the deposition less than three hours prior. Defendant asserts that the disputed charges are allowable under the Court's discretion.

The Court finds that the deposition costs are allowable and that plaintiffs have not met their burden that such costs are neither reasonable nor necessary. The Court notes that plaintiff Maria Cadieux's deposition included a Spanish language interpreter, which explains the cost variance between the two plaintiffs.

Item 8: expert witness fees - \$31,505.18 (Tandy Engineering)

Plaintiffs argue that the expert witness Robert Pascarella testified only on January 29, 2026, but stayed in Los Angeles for "multiple days" and that the testimony, prep, and travel could have been done all within a day. The Court notes that the invoice indicates that he arrived in LA on January 28 and returned to Detroit on January 30. Plaintiffs assert that \$652.50 for review and analyze case on January 22, 2026 was unnecessary because the expert witness charged the same on April 5, 2025, and should have been familiar with the case details. The Court notes that, as indicated on the invoice, the April 2025 review was in the context of the vehicle inspection, and the January 2026 review (more than eight months later) was in the context of trial. Plaintiffs further argue that several expert witness charges are excessive and/or unnecessary, including \$435 to prepare for vehicle inspection, \$870 to conduct technical research (\$435/hr. x 2 hrs.), and \$3915 for vehicle inspection (\$435/hr. x 9 hrs. to "prepare for and conduct vehicle inspection and drive. Return travel and review notes and photographs").

In opposition, defendant asserts

that plaintiff misrepresents the expert witness' hourly rate, which is \$435 and reasonable. Defendant contends also that as for \$1087.50 for defendant's expert's deposition, plaintiff took the deposition and never paid the fee as required under CCP §§2034.430(b) and 2034.450(a).

The Court finds that the costs are allowable and that plaintiffs have not met their burden that such costs are neither reasonable nor necessary.

Item 12: Interpreter fees - \$875

"Fees of a certified or registered interpreter for the deposition of a party or witness who does not proficiently speak or understand the English language" are allowable. CCP §1033.5(a)(3)(B).

Plaintiffs contend that defendant has not cited to any statutory authority for recovery of \$875 for interpreter fees or that the fees were necessary.

In opposition, defendant argues that the costs are recoverable.

The Court finds that the costs are allowable under CCP §1033.5(a)(3)(B).

Item 13: Models, enlargements, and photocopies of exhibits - \$7858.98

"Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact." CCP §1033.5(a)(13).

Plaintiffs argue that the fees are excessive and unreasonable, pointing to \$200 for a 16GB flash drive and charges for "blowbacks."

In opposition, defendant contends that the exhibits were used with witnesses and argued to the jury over an

eight-day trial and were “reasonably helpful to aid the trier of fact.” Defendant explains the invoice as follows: “printing (blowbacks) with assembly” – 3080 [pages] x 4 [sets] [for Court, witness stand, clerk, and counsel] and “printing (blowback) – color” – 1480 [pages] x 4 [sets]; and that the thirty-two binders were eight per set and that the four flash drives were \$50 each.

The Court finds that these costs are recoverable as they were reasonably helpful to aid the trier of fact.

Item 15: Other (counsel mileage, hotel, parking and meals during trial) - \$1753.44

Plaintiffs assert that defendant seeks reimbursement for counsel mileage, hotel, parking, and meals during trial, but that the costs are “clumped” together. Plaintiffs also argue that the hotel stay is unreasonable because defense counsel’s office is within ten to fifteen minutes from the courthouse. Plaintiffs dispute that mileage costs or \$304.65 for meals are necessary or reasonable.

In opposition, defendant explains that trial counsel is an attorney in Bowman and Brooke’s San Diego office and resides in San Diego. Defendant argues that three nights of lodging at room rates of \$175 and \$193 with parking and taxes was less expensive and “more sensible” than daily round trips. Defendant also contends that the meals are “modest and documented”--\$173.88 dinner shared by three people, including the expert; \$16.25 breakfast for two; \$19.54 lunch for one; and working lunches during trial days. Defendant asserts that each expense identifies each attendee, his or her firm and role, and allocates each share.

The Court finds that such costs are not enumerated in CCP section 1033.5(a), which only allows food and lodging for jurors, and only allows travel expenses to attend depositions. To the extent they are sought under section 1033.5(c), the Court exercises its discretion to deny them.

ORDER

The motion is DENIED as to Items 1, 4, 8, 12, and 13.

The motion is GRANTED as to Item 15
in the amount of \$1753.44.

The Court STRIKES \$1753.44 from
defendant's memorandum of costs.

Defendant is ordered to give notice of ruling.